

Amendment No. 1 to HB1346

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1232*

House Bill No. 1346

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "Recovery Court Renewal Act."

SECTION 2. Tennessee Code Annotated, Section 40-32-107, is amended by adding the following as a new subsection:

(e)

(1) As used in this subsection (e), an "eligible petitioner" means a person who:

(A) Is seeking expunction of an offense that:

(i) Is eligible for expunction under subdivision (a)(1); and

(ii) Occurred at least ten (10) years after the person's conviction for an offense under § 55-10-401;

(B) Has fulfilled all requirements of the sentence imposed by the court for the offense the person is seeking to expunge, including:

(i) Payment of all fines, restitution, court costs, and other assessments for the offense;

(ii) Completion of any term of imprisonment or probation for the offense; and

(iii) Meeting all conditions of supervised or unsupervised release for the offense;

(C) Has successfully completed a certified recovery court program established under title 16;

(D) Has not previously been granted expunction under subsection (a), subsection (b), subsection (c), or this subsection (e) for another criminal offense; and

(E) Has not been convicted of an offense under § 55-10-401 more than one (1) time.

(2) A person seeking expunction pursuant to this subsection (e) shall petition the court pursuant to § 40-32-108.

(3) A court shall not grant an expunction under this subsection (e) if the offense the person is seeking to expunge involves a motor vehicle and the use of alcohol or a controlled substance, including, but not limited to, a violation of § 55-10-401.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.